U.S. Department of State

FEDERAL ASSISTANCE AWARD

1. Recipient Name PARTNERS OF THE AMERICAS, INC.	2. Assistance Type: ☐ Cooperative Agreement ☐ Fixed Amount Award ☒ Grant ☐ Property Grant ☐ Voluntary Contribution
3. Address 1424 K ST NW STE 700 WASHINGTON, DC 20005-2410 USA	
4. Recipient POC: DEBRA COOPER Phone Number: 2024151174 Email: DCooper@partners.net	

5. Type of Entity	6. Unique Entity Identifier	7. EIN/ TIN
U.S. Non-Profit Organization	DD5WNYRUYFE5	**********
8. Assistance Listing Number	**9. Statutory Authority for Assistance**	**10. Award Number**
19.019	Foreign Assistance Act	SSJTIP25GR0012

11. Period of Performance Start Date 2025-10-01 End Date 2030-09-30	12. Amendment Number M001
13. Accounting and Appropriation Data 1900-2024-2025-1911451022000J-2071-INL-2791--SSJTIP25GR0012-4121--011810-----2025FDSTRTP2071-SSJTIP25GR0012-PRY-PS.5 $0.00	14. Funds Certified By Bianca D Washington Bianca D Washington

Funding Distribution

15.	Total Prior Costs	New Costs	Total Cost
U.S. Share of Costs	$2,500,000.00	$0.00	$2,500,000.00
Recipient Share of Costs	$0.00	$0.00	$0.00
Total Costs	$2,500,000.00	$0.00	$2,500,000.00

16. Purpose of the Federal Award Activity

The purpose of this amendment is to: 1.) Remove previously imposed restrictions under Section 16, 2.) Remove Grupo Luna Nueva as a subrecipient and approve associated budget modifications. Grantee can begin project activities under the recently issued award.

17. Specific Award Conditions

☐ Attached

Agreement

The recipient agrees to execute the work in accordance with the Notice of Award, the approved application incorporated herein by reference or as attached, and 2 CFR Parts 200 and 600 including any subsequent revisions.

18a. Recipient Name John McPhail		19a. Grants Officer Name Jocelyn Harrison	
18b. Recipient Signature John McPhail (electronically signed)		19b. Grants Officer Signature Jocelyn Harrison (electronically signed)	
18c. Title	18d. Date (dd-mmm-yyyy) 2025-12-15 16:41:20	19c. Bureau/Office/Post Office to Monitor and Combat Trafficking in Persons	19d. Date (dd-mmm-yyyy) 2025-12-12

By signing this Federal award, the recipient acknowledges that it will comply with Federal regulations, the Terms and Conditions, and any Special Award Conditions associated with this award. Receipt of the recipient's signature and return of the Federal Award Coversheet is required within ten (10) business days of the Grants Officer's signature. Please return to the Grants Officer address indicated here:

U.S. DEPARTMENT OF STATE
AWARD PROVISIONS

During the period of performance, the Recipient must comply with:

- The Award Provisions below;
- The Department of State Standard Terms and Conditions for Federal Awards, which are incorporated by reference and made part of this Federal Award. Electronic copies containing the complete text are available at:https://www.state.gov/about-us-office-of-the-procurement-executive/
- The applicable sections of 2 CFR §200 and 2 CFR §600 and
- All assurances and certifications made during the application process.

1) FEDERAL AWARD IDENTIFICATION NUMBER (FAIN):

SSJTIP25GR0012

2) FEDERAL SHARE OF AWARD:

$(USD)2,500,000.00

3) PURPOSE AND OBJECTIVES OF AWARD:

a. Purpose:
PARTNERS OF THE AMERICAS, INC. (hereinafter referred to as the Recipient), is hereby provided a federal award, the purpose of which is to:
Strengthen protection services, particularly among adult male victims of trafficking, and build the capacity of non-specialized shelter staff to provide trauma-informed and victim-centered care for victims of human trafficking.

The Recipient shall carry out this award in accordance with its proposal dated 2024-10-11 and any revisions to which both parties agree to in writing. The Recipient's proposal and any subsequent negotiated revisions are hereby incorporated by reference.

b. Objectives and Expected Outcomes: The Recipient agrees to perform the program and meet the specific objectives below:

Objective 1: Increase comprehensive services for adult trafficking victims, particularly men, through the provision of shelter, trauma-informed mental health counseling, and medical and legal assistance.

Objective 2: Enhance and implement the use of existing protection SOPs to provide trauma-informed and victim-centered care to adult victims of trafficking.

Objective 3: Build the Capacity of Non-Specialized Shelters to Support Adult Male Trafficking Victims.

4) CONTACT INFORMATION:

a. Grants Officer:

- Name: Maurice Johnson
- Bureau/Mission: Department of State - Office to Monitor and Combat Trafficking in Person
- Address: 2025 E Street, NW, 20006
- Email: johnsonmw2@state.gov
- Telephone: 771-204-9033

b. Grants Officer Representative:

- Name: Crystal Hill
- Bureau/Mission: Department of State - Office to Monitor and Combat Trafficking in Person
- Address: 2025 E Street, NW, 20006
- Email: hillcc2@state.gov
- Telephone: 202-322-6824

5) AUTHORIZED BUDGET SUMMARY:

Unless otherwise stipulated, funds provided under this award may only be expended on authorized activities which take place during the period of performance.

Budget Category	New Costs	Prior Costs	Total Costs
a) Personnel	$381,505.00	$365,780.00	$747,285.00
b) Fringe Benefits	$108,424.00	$142,076.00	$250,500.00
c) Travel	$53,590.00	$40,048.00	$93,638.00
d) Equipment	$0.00	$0.00	$0.00
e) Supplies	$6,546.00	$5,124.00	$11,670.00
f) Contractual	($264,315.00)	$649,175.00	$384,860.00
g) Construction	$0.00	$0.00	$0.00
h) Other Direct Costs	($301,726.00)	$897,106.00	$595,380.00

Budget Category	New Costs	Prior Costs	Total Costs
i) Total Direct Costs (Lines a-h)	($15,976.00)	$2,099,309.00	$2,083,333.00
j) Indirect Costs	$15,976.00	$400,691.00	$416,667.00
k) US Share of Costs (Lines i-j)	$0.00	$2,500,000.00	$2,500,000.00
l) Recipient Share of Costs	$0.00	$0.00	$0.00

6) INDIRECT COSTS:

Type	Rate (%)	Applicable to
Provisional	28.28%	Overhead

The base of application for the rate(s) above is defined in the Recipient's Negotiated Indirect Cost Rate Agreement dated 2022-10-17.

7) PRE-AWARD COSTS:

N/A

8) PROGRAM INCOME:

Deduction: Any program income earned by the Recipient as a result of this award and during the period of performance must be deducted from the total allowable costs, reducing the overall total amount of the Federal award.

9) COST SHARING:

N/A

10) SUBRECIPIENTS:

Any subawards must comply with the requirements of 2 CFR §200.332--Requirements for pass-through entities.

Issuing a subaward that was not proposed with the specific subrecipient's name in the Recipient's approved proposal requires prior approval. The Recipient must submit the proposed subaward budget and scope of work to the GO for review of cost allowability and approval prior to executing a subaward. The executed subaward does not need to be submitted to the GO but must be provided upon request.

11) CHANGES IN SUBRECIPIENTS:

The inclusion of specific subrecipient(s) was a determining factor in the merit review or eligibility process. Changes in subrecipient(s) require GO approval.

12) PAYMENTS:

Payments under this award will be made through the U.S. Department of Health and Human Services (HHS) Payment Management System (PMS). Unless otherwise stipulated, the Recipient may request payments on a reimbursement or advance basis. Instructions for requesting payments are available at: https://pms.psc.gov/

Advance payments must be limited to the minimum amounts needed and be timed to be in accordance with the actual, immediate cash requirements of the Recipient in carrying out the purpose of this award. The timing and amount of advance payments must be as close as is administratively feasible to the actual disbursements by the Recipient for direct program or project costs and the proportionate share of any allowable indirect costs.

Failure to comply with the terms and conditions of this award may result in payment delays.

13) REPORTING AND MONITORING:

The Recipient is required to submit Quarterly performance and Quarterly financial reports. The Recipient is required to submit Performance Reports and Financial Reports according to the reporting cycles and dates listed below. Performance Reports must be signed and include the following statement: "By signing this report, I certify to the best of my knowledge and belief that the report is true, complete, and accurate." Financial Reports must be signed and certified.

Reports are due in accordance with the schedule below. (30 days after the end of the reporting period for quarterly or semiannual reports or 90 days after the reporting period for annual reports). **Final performance and final financial reports are due 120 calendar days after the period of performance end date.** Failure to comply with these reporting requirements may jeopardize the Recipient's eligibility for future awards and/or delays in payments.

Performance Report Schedule Quarterly

Report Range Start	Report Range End	Due Date
2025-10-01	2025-12-31	2026-01-30
2026-01-01	2026-03-31	2026-04-30
2026-04-01	2026-06-30	2026-07-30
2026-07-01	2026-09-30	2026-10-30
2026-10-01	2026-12-31	2027-02-01
2027-01-01	2027-03-31	2027-04-30
2027-04-01	2027-06-30	2027-07-30

Report Range Start	Report Range End	Due Date
2027-07-01	2027-09-30	2027-11-01
2027-10-01	2027-12-31	2028-01-31
2028-01-01	2028-03-31	2028-05-01
2028-04-01	2028-06-30	2028-07-31
2028-07-01	2028-09-30	2028-10-30
2028-10-01	2028-12-31	2029-01-30
2029-01-01	2029-03-31	2029-04-30
2029-04-01	2029-06-30	2029-07-30
2029-07-01	2029-09-30	2029-10-30
2029-10-01	2029-12-31	2030-01-30
2030-01-01	2030-03-31	2030-04-30
2030-04-01	2030-06-30	2030-07-30
2030-07-01	2030-09-30	2030-10-30
2025-10-01	2030-09-30	2031-01-28

Financial Report Schedule Quarterly

Report Range Start	Report Range End	Due Date
2025-10-01	2025-12-31	2026-01-30
2026-01-01	2026-03-31	2026-04-30
2026-04-01	2026-06-30	2026-07-30
2026-07-01	2026-09-30	2026-10-30
2026-10-01	2026-12-31	2027-02-01
2027-01-01	2027-03-31	2027-04-30
2027-04-01	2027-06-30	2027-07-30
2027-07-01	2027-09-30	2027-11-01
2027-10-01	2027-12-31	2028-01-31

Report Range Start	Report Range End	Due Date
2028-01-01	2028-03-31	2028-05-01
2028-04-01	2028-06-30	2028-07-31
2028-07-01	2028-09-30	2028-10-30
2028-10-01	2028-12-31	2029-01-30
2029-01-01	2029-03-31	2029-04-30
2029-04-01	2029-06-30	2029-07-30
2029-07-01	2029-09-30	2029-10-30
2029-10-01	2029-12-31	2030-01-30
2030-01-01	2030-03-31	2030-04-30
2030-04-01	2030-06-30	2030-07-30
2030-07-01	2030-09-30	2030-10-30
2025-10-01	2030-09-30	2031-01-28

Performance Reports:

All Performance Reports must indicate the Federal Award Identifying Number (FAIN), period of performance, reporting period end date, reporting frequency (quarterly, interim, semi-annual, annual, final) and include a detailed description of program progress.

As appropriate, Performance Reports must contain:

- Progress toward achieving program objectives as included in section 3 of this award in a measurable way, referencing specific objectives, indicators, and activities.
- A comparison of actual accomplishments to the objectives of the federal award established for the period. This should include information relating financial data and accomplishments to performance goals and objectives;
- Explanation of any challenges to meeting established goals or objectives;
- Additional pertinent information including an analysis and explanation of cost overruns or high unit costs; and
- Any lessons learned, information on improving program outcomes, and how to foster the adoption of promising practices

Performance Reports must be submitted to the Grants Officers and Grants Officer Representative via MyGrants.

Financial Reports:

All financial reports must be submitted using form SF-425--Federal Financial Report. Financial reports shall be completed in the Payment Management system. Instructions for completing the SF-425 in PMS are available at: https://pms.psc.gov/.

Financial Reports completed in PMS must also be downloaded and submitted to the Grants Officers and Grants Officer Representative via MyGrants.

The Recipient acknowledges that the Department of State may make site visits as determined by the Grants Officer.

14) SUBSTANTIAL INVOLVEMENT:

N/A

15) ACKNOWLEDGMENT OF DEPARTMENT OF STATE SUPPORT AND BRANDING AND MARKING REQUIREMENTS:

The Department of State Standard Terms and Conditions for Federal Awards requires that materials produced under a federal award be marked appropriately to acknowledge the support of the Department of State.

16) ADDITIONAL BUREAU/POST SPECIFIC REQUIREMENTS:

A. Additional Reporting Requirements

1. Technical Requirements

a. Program
The quarterly narrative report should be uploaded by the Recipient using the MyGrants website. First, log into your MyGrants account via https://mygrantsdev.servicenowservices.com/mygrants. You will need to submit your grant's narrative report along with supporting documentation and data under the "Post Award Activities" section. If a Post-Award Activity has already been created for you, please subit your documents into the relevant Post-Award Activity section. If quarterly submission activities are not already created for you, you may create an activity. First click the "Award" tile on the MyGrants homepage, and then click "View Awards". Locate the "Post-Award Activities" tab at the bottom of the award page. Begin the document upload process by accessing a desired postaward activity. Scroll to the bottom of the page to access the "Attachment Details" section. Upon document submission, the grantor assigned to review the post-award activity will receive a notification. The Status of the Post-Award Activity will only appear as completed after your GOR enters a completion date.

All materials to guide you through using MyGrants are available on the ILMS homepage. If you need

technical assistance the ILMS Customer Support Desk is available 24 hours a day, 7 days a week to assist with any problems or questions regarding MyGrants.

Self Service Portal: https://afsitsm.service-now.com/ilms
Phone: 1-888-313-4567

b. Financial
The Federal Financial Report (FFR SF-425) must be submitted through the Payment Management System (PMS). The electronic version of the FFR can be accessed at: http://www.dpm.psc.gov/. Once this report has been approved by the awarding agency, the Recipient must upload the approved report to MyGrants, following the same steps used to upload their performance progress reports. Failure to comply with these reporting requirements may jeopardize the Recipient's eligibility for future Agreements.

The Recipient is responsible for submitting the FFR through the PMS website. For assistance with substantive questions please contact the Grants Officer directly. If you need technical assistance the ONE-DHHS Help Desk for PMS Support is available Monday - Friday from 7 a.m. to 9 p.m. EST (except Federal Holidays).

Phone: (877) 614-5533
Email: State_Dept@psc.hhs.gov

The PMS Help Desk provides assistance to all users of the Payment Management System (PMS). They are readily available to respond to questions regarding the PMS application; assist users having difficulty navigating through PMS application system menus and processes; and reset PMS user passwords. You may also submit a ticket on-line and access more services using the Self-Help Web Portal located at https://gditshared.servicenowservices.com/hhs_pms.

Please note: the Recipient must upload the approved report to MyGrants, following the same steps used to upload their performance progress reports.
2. Interim Reports

a. Program
J/TIP requires grantees to compile program progress reports according to the goals and objectives of the project as outlined in the approved proposal. J/TIP strongly recommends grantees to use the Progress Report Template that will be sent by the Program Officer upon start of the award. Section 1.1 of the report should include a summary of progress towards the overall goal, and progress towards each objective and activity under each objective. All components of the report should be completed including unplanned results, budget expenditures, staffing, key issues and challenges, continued relevance and proposed course correction, and the work plan for next quarter. As an appendix to your quarterly report

template, please include an updated copy of the Common Performance Indicator (CPI) document tracking progress against the J/TIP indicators incorporated in your project and attach a copy of your updated Results Performance Monitoring Plan (RPM) where you report on progress made towards each objective, and the associated indicators. As additional appendices, please include copies of training materials, presentations, press clippings, CVs or resumes of new staff, copies of contracts signed with new consultants or contactors, etc., if relevant to your work in the reporting period.

The Recipient acknowledges that the Grants Officer or Grants Officer Representative will share performance reports with relevant stakeholders within the Department of State and/or relevant agencies.

b. Financial
Form FFR SF-425 shall be submitted within 30 days following each calendar year quarter in accordance with the format suggested in the DOS "Terms and Conditions." This report must be certified by the Recipient's Chief Fiscal Officer or an officer of comparable rank.

3. Final Report

The Recipient must submit, within 120 calendar days after the project period end date, all financial performance, and other reports as required by the terms and conditions of the award. The TIP Office will provide further guidance on the expectations of the final report post-award.

a. Program
The Recipient is required to submit a final narrative progress report, a final Common Performance Indicator tracking sheet, a final RPM, and copies of any major grant deliverables (e.g. publications, training curriculum, etc.) The narrative progress report should describe how the goals and objectives of the award were met, problems encountered, resolutions, the likelihood that the project will be sustained after the end of J/TIP funding, and an overview of any new plans or projects that have been developed by the Recipient or other NGOs to address the problem. J/TIP has a recommended template for this final submission that the Program Officer will send closer to the project end date.

b. Financial
Form FFR SF-425 shall be submitted within 120 days after the expiration date of this Agreement. This report must disclose cost sharing and be certified by the Recipient's Chief Fiscal Officer or an officer of comparable rank.

B. Definition of Trafficking

The U.S. government defines “trafficking in persons” as:

• Sex Trafficking – when a trafficker uses force, fraud, or coercion to compel a person to engage in a

commercial sex act or when a trafficker causes a child who has not attained 18 years of age to engage in a commercial sex act.
• Forced Labor – when a trafficker recruits, harbors, transports, provides, or obtains a person for labor or services by using force, fraud, or coercion.

Trafficking in persons does not require the movement of a person. Under the Trafficking Victims Protection Act (TVPA) and generally consistent with the UN Protocol to Prevent, Suppress and Punish Trafficking in Persons (Palermo Protocol), individuals may be trafficking victims regardless of whether they once consented, they participated in unlawful acts their traffickers compelled them to commit, someone transported them into the exploitative situation, or they were simply born into a state of servitude. The Office will not support projects that use alternate definitions of trafficking.

C. Prior Approval Requirements

1) Written prior approval is required, by way of a formal amendment (DS-1909A) through MyGrants, from J/TIP's GO for:

• Change in scope or the objective of the project or program (even if there is no associated budget revision requiring prior written approval);
• Extension of period of performance;
• Recipients must request approval for a no cost extension within 90 days, and no later than 45 days prior to end of the project period.
• The sub-award, transfer, or contracting out of any work under the award not previously approved in the grant agreement (this provision does not apply to the acquisition of supplies, material, equipment or general support services);
• Changes in the approved cost-sharing or matching;
• Re-budgeting more than 10% of the total approved award between direct cost categories.

2) Written prior approval is required, by way of an email, from J/TIP's GO for:
• Change in key personnel specified in the application or award document;
1. Key personnel are defined as individuals who contribute to the program development or execution of a project in a substantive measurable way, whether or not they request salaries or compensation.
2. Project Director/Principal Investigators (PD/PI(s)) are always considered key personnel, other key personnel include individuals that are considered critical to the project, i.e. their absence from the project would have a significant impact on the approved scope of the project.
3. Resumes or CVs and level of effort greater than zero are all required of key personnel.
• The absence of more than three months, or a 25 percent reduction in time devoted to the project, by the approved project director or principal investigator;

D. Equipment

Equipment is herein defined as an article of non-expendable, tangible, personal property having a useful life of more than one year and an acquisition cost in excess of $10,000. Items with an acquisition cost of $10,000 or more if allowable as direct costs shall be specifically stated in the award documents.
The Recipient retains title to property acquired with assistance funds. The Recipient is required to furnish the DOS with a listing of all non-expendable property acquired with a current fair market value in excess of $10,000 prior to completion of the project. The final inventory report must be sent to the Grants Officer to request disposition instructions as appropriate.

The Tangible Personal Property form, SF-428-C Disposition Request/Report, should be completed and submitted by the Recipient via the “Post-Award Activities” section in MyGrants.

E. Intellectual Property

The Recipient may copyright any work that is subject to copyright and was developed or acquired under a Federal award. However, the Department reserves a royalty-free, nonexclusive and irrevocable right to reproduce, publish, or otherwise use the work for Federal purposes, and to authorize other entities, including other non-Federal entities, to do so. In addition, the Federal Government has the right to obtain, reproduce, publish, or otherwise use data produced under a Federal award.

F. Travel

All international travel charged to this Agreement must be on an American flag carrier. If travel was on a foreign flag carrier, a statement justifying the use of a foreign flag carrier, which meets one of the exceptions cited in the "Fly America Act," must be documented and kept for the Recipient’s internal files. The GOR can provide the Recipient with a sample justification letter to use. Any travel on foreign flag carrier, which does not meet one of the exceptions of the Act, will be disallowed.

G. Branding and Marking

All programs, projects, assistance, activities, and public communications to foreign audiences, partially or fully funded by the Department, must be marked appropriately overseas with the standard U.S. flag in a size and prominence equal to (or greater than) any other logo or identity. The recipient may continue to use existing logos or program materials; however, a standard rectangular U.S. flag must be used in conjunction with such logos. Recipients wishing to use the Department of State seal in addition to the U.S. flag must receive prior written permission from the GO.

This requirement does not apply to the recipient’s own corporate communications or in the United States. For general questions about the Department marking policy and overall branding strategy, please contact VisiblyAmerican@state.gov.

The recipient must appropriately acknowledge the U.S. Government support in all dealings with program participants, and in press releases, ceremonies, dedications, interviews, publicity, etc. Furthermore, the recipient must coordinate publicity, ceremonial events, dedications, etc., with the sponsoring Department office or embassy office and public affairs officer.

For all Department funded awards, publications or articles resulting from the award must acknowledge the support of the Department and include a disclaimer of official endorsement as follows: “This [article] was funded [in part] by a grant from the United States Department of State. The opinions, findings and conclusions stated herein are those of the author[s] and do not necessarily reflect those of the United States Department of State.” The recipient must ensure that this disclaimer be included on all brochures, flyers, posters, billboards, or other graphic artwork that are produced under the award.

H. Program Evaluation Policy

J/TIP reserves the right to conduct a baseline assessment and/or rigorous independent evaluation of grant performance, to include the collection and analysis of timely and reliable data and information.

J/TIP has full responsibility for oversight of these evaluations to ensure an unbiased assessment of the grant activities. Recipients are expected to cooperate to the fullest extent possible if selected for an assessment. No additional funds will be made available for your participation, but a J/TIP commissioned evaluation should not add to grantee costs.

J/TIP will notify the Recipient in advance if their grant project is selected for an evaluation. To facilitate review and evaluation related to the performance activity, Recipients shall, whenever appropriate, disclose relevant data and information. The results of the assessment may be used for the development of agency best practices, to document program impact, assess return on investment, and to assure accountability for the American people.

I. Anti-Prostitution Policy and Requirements

The U.S. government is opposed to prostitution and related activities, which are inherently harmful and dehumanizing, and contribute to the phenomenon of trafficking in persons. Grantees are required to agree to the following special conditions prior to a grant being awarded:

(1) None of the funds made available herein may be used to promote, support, or advocate the legalization or practice of prostitution. Nothing in the preceding sentence shall be construed to preclude assistance designed to combat trafficking in persons, including programs for prevention, protection of victims, and prosecution of traffickers and others who profit from trafficking in persons, by ameliorating the suffering of, or health risks to, victims while they are being trafficked or after they are out of the

situation that resulted from such victims being trafficked.
(2) The Recipient shall insert this provision in all sub-agreements under this award.

J. Training Certification

An organization receiving funds must agree to the following:

"This organization hereby certifies that, to the extent practicable, persons or entities providing legal services, social services, health services, or other assistance have completed, or will complete, training in connection with trafficking in persons." The Recipient shall insert this provision in all sub-agreements under this award. TVPA sec. 107A(b)(1) (P.L. 110-457).

K. Provision on Safeguarding against Trafficking in Persons

(1) The recipient, subawardee, or contractor, at any tier, or their employees, labor recruiters, brokers or other agents, must not engage in:
• Trafficking in persons during the period of this award;
• Procurement of a commercial sex act during the period of this award;
• Use of forced labor in the performance of this award;
• Acts that directly support or advance trafficking in persons, including the following acts:

i. Destroying, concealing, confiscating, or otherwise denying an employee access to that employee's identity or immigration documents;

ii. Failing to provide return transportation or pay for return transportation costs to an employee from a country outside the United States to the country from which the employee was recruited upon the end of employment if requested by the employee, unless:

a) exempted from the requirement to provide or pay for such return transportation by J/TIP under this award; or
b) the employee is a victim of human trafficking seeking victim services or legal redress in the country of employment or a witness in a human trafficking enforcement action;

iii. Soliciting a person for the purpose of employment, or offering employment, by means of materially false or fraudulent pretenses, representations, or promises regarding that employment;

iv. Charging employees recruitment fees; or

v. Providing or arranging housing that fails to meet the host country housing and safety standards.

(2) In the event of a violation of section (a) of this provision, J/TIP is authorized to terminate this award, without penalty, and is also authorized to pursue any other remedial actions authorized as stated in section 1704(c) of the National Defense Authorization Act for Fiscal Year 2013 (Pub. L. 112-239, enacted January 2, 2013).

(3) If the estimated value of services required to be performed under the award outside the United States exceeds $500,000, the recipient must submit to the GO or GOR, the annual “Certification regarding Trafficking in Persons, Implementing Title XVII of the National Defense Authorization Act for Fiscal Year 2013” as required prior to this award, and must implement a compliance plan to prevent the activities described above in section (a) of this provision. The recipient must provide a copy of the compliance plan to the GO or GOR upon request and must post the useful and relevant contents of the plan or related materials on its website (if one is maintained) and at the workplace.

(4) The recipient’s compliance plan must be appropriate to the size and complexity of the award and to the nature and scope of the activities, including the number of non-United States citizens expected to be employed. The plan must include, at a minimum, the following:

• An awareness program to inform employees about the trafficking related prohibitions included in this provision, the activities prohibited and the action that will be taken against the employee for violations.
• A recruitment and wage plan that only permits the use of recruitment companies with trained employees, prohibits charging of recruitment fees to the employee, and ensures that wages meet applicable host-country legal requirements or explains any variance.
• A housing plan, if the recipient or any subawardee intends to provide or arrange housing. The housing plan is required to meet any host-country housing and safety standards.
• Procedures for the recipient to prevent any agents or subawardee at any tier and at any dollar value from engaging in trafficking in persons activities described in section a of this provision. The recipient must also have procedures to monitor, detect, and terminate any agents or subawardee or subawardee employees that have engaged in such activities.
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(5) If the Recipient receives any credible information regarding a violation listed in section a(1)-(4) of this provision, the recipient must immediately notify the cognizant Agreement Officer and the Office of the Inspector General; and must fully cooperate with any Federal agencies responsible for audits, investigations, or corrective actions relating to trafficking in persons.

(6) The GO may direct the Recipient to take specific steps to abate an alleged violation or enforce the requirements of a compliance plan.

(7) For purposes of this provision, “employee” means an individual who is engaged in the performance of this award as a direct employee, consultant, or volunteer of the recipient or any subrecipient. The recipient must include in all subawards and contracts a provision prohibiting the conduct described in

section a(1)-(4) by the subrecipient, contractor, or any of their employees, or any agents. The recipient must also include a provision authorizing the recipient to terminate the award as described in section b of this provision.

L. Audit Requirements for Foreign Non-Profit and Foreign For-Profit Organizations

Domestic non-Federal entities that expend $1,000,000 or more in Federal financial assistance during their fiscal year are required to have a single or program-specific audit conducted for that year. Although this provision (2 CFR §200, Subpart F) is not applicable to foreign non-profit and foreign for-profit organizations, the Department of State requires these Recipients, if they expend $1,000,000 or more in DOS funds in the organization's fiscal year, whether as a prime or a subrecipient, to undergo a recipient-contracted single or program-specific audit annually. This audit must be uploaded into MyGrants for GO review.

M. Country Notification
N/A

N. Coordination with Embassy

J/TIP encourages the Recipient to engage with U.S. embassy TIP points of contacts in the country where the award will be implemented to build relationships and have ongoing communication on significant developments and matters of mutual interest and to observe program activities. However, J/TIP Grants Officers/Grant Officer Representatives are responsible for the monitoring of all TIP Office-funded programs and serve as the grantee's primary point of contact for this project. All inquiries and final decisions on an award must be made through J/TIP. The Recipient will collaborate with the U.S. embassy on items related to Leahy Vetting (see section 19).

17) SPECIFIC CONDITIONS:

N/A

18) SPECIAL PROVISION FOR PERFORMANCE IN A DESIGNATED COMBAT AREA:

N/A

19) STATE DEPARTMENT LEAHY AMENDMENT VETTING REQUIREMENTS:

Funds provided under this award are subject to Section 620M of the Foreign Assistance Act of 1961, as amended, a provision titled "Limitation on Assistance to Security Forces" (the "Leahy Amendment"). Subsection (a) of that provision states: "(a) In General.—No assistance shall be furnished under this Act [the Foreign Assistance Act] or the Arms Export Control Act to any unit of the security forces of a foreign country if the Secretary of State has credible information that such unit has committed a gross violations

of human rights." Accordingly, none of the funds under this award may be used to provide training or other assistance to any unit or member of the security forces of a foreign country if the Department of State has credible information that such unit or individual has committed a gross violation of human rights.

In signing this award, the Recipient agrees to exercise due diligence to ensure compliance with the Leahy Amendment provision and Department of State policy, and to cooperate with the Department of State in implementation of the requirement.

The Department of State implements the Leahy Amendment requirement by vetting units or individuals proposed for training or other assistance to check for credible information of a gross violation of human rights by such units or individuals.

To facilitate Department of State vetting, the Recipient must provide the following information for proposed participants at least sixty (60) calendar days prior to commencing award activities. This information should be submitted to the U.S. embassy in the country where the award will be implemented in order to initiate Leahy vetting procedures:

Information needed: Full name, date of birth, country of birth, country of citizenship, gender, rank, title, and organizational affiliation. Please also include the activity and date that the activity will take place—if the person will participate throughout an extended program, please note the timeframe. Participant information should be submitted in the format attached.

Information required for "security forces" personnel: The above information is needed for each member of a foreign police or military unit (security forces, broadly defined) who will participate in any activity under this award. This includes both civilian and military employees of security forces participating in any activities funded under this award, including training, workshops or meetings, conferences, or other activities.

The Recipient must collaborate with the relevant U.S. embassy on a case-by-case basis to determine if the Leahy requirement applies to specific activities or proposed participants. Individuals who are not members of the security forces but who participate in activities under the award (e.g., politicians, academics, etc.) generally do not need to be vetted.

Submission Deadline: Each candidate must be cleared under Leahy vetting in advance of participation in activities funded under this award. The vetting process typically takes approximately one month but may take longer if there are a large number of candidates or if issues arise. Thus, all information on proposed candidates must be received by the embassy at least sixty (60) days in advance of the training event or other activity.

The Recipient agrees that it will not include any security forces candidate in training or other activities funded under this award until the Department of State advises that the candidate has cleared Leahy

vetting and is approved for participation.

20) REPORTING TAXES ON FOREIGN ASSISTANCE FUNDS:

The Recipient is required to submit a report detailing foreign taxes assessed under this award during the prior U.S. Government fiscal year (10/01 — 09/30). The report must be submitted to the Grants Officer on an annual basis by February 15 even if no taxes were assessed. The Recipient must submit an updated report if the foreign government reimburses the Recipient for any of the taxes reported in a previous report. The report must include the Recipient's name, contact information, award number, and the amount of foreign taxes assessed by a foreign government.

Taxes to be reported include value-added taxes and customs duties assessed by each foreign government receiving foreign assistance under this award, including under subrecipient awards or subcontracts, (listed separately) on any purchase of goods or services of $500 or more on United States foreign assistance funds under this award. The Recipient is not required to report on individual income taxes assessed to local staff or any taxes assessed by a third-party foreign government, which is not a beneficiary of the foreign assistance funds used to finance this award.

21) PROHIBITION ON CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT

N/A

22) KEY PERSONNEL:

The following are Key Personnel for this award:

Job Title	Organization
M&E Coordinator	Grupo Luna Nueva
TIP Specialist	Grupo Luna Nueva
Project Coordinator	Grupo Luna Nueva
Project Coordinator	PARTNERS OF THE AMERICAS, INC.

Changes in Key Personnel require prior written GO approval in accordance with 2 CFR 200.308(f)(2).

23) LANGUAGE:

The Recipient must submit performance reports and official correspondence for this award in English.

24) AWARD SENSITIVITY DESIGNATION:

N/A

25) FUNDING RESTRICTIONS FOR THE UNITED NATIONS RELIEF AND WORKS AGENCY (UNRWA):

None of the funds awarded under this agreement may be made available for subawards, direct financial support, or otherwise used to provide any payment or transfer to United Nations Relief and Works Agency (UNRWA).

26) PROHIBITION ON FUNDING ACTIVITIES THAT ENCOURAGE MASS-MIGRATION CARAVANS TOWARDS THE UNITED STATES SOUTHWEST BORDER

None of the funds awarded under this grant may be made available to encourage, mobilize, publicize, or manage mass-migration caravans towards the United States southwest border. Funds may not be made available for legal counseling on the United States asylum process; and/or for referrals to legal representation in the United States.

Funds may only be used for cash cards for use in the country in which they are provided or to facilitate assisted voluntary returns and other purposes that do not encourage, mobilize, publicize, or manage mass migration caravans towards the United States southwest border. The provision of humanitarian assistance is permitted.

27) CERTIFICATION REGARDING COMPLIANCE WITH APPLICABLE FEDERAL ANTI-DISCRIMINATION LAWS

N/A

28) CERTIFICATION REGARDING COMPLIANCE WITH 20 U.S.C. 1011f AND ANY OTHER APPLICABLE FOREIGN FUNDING DISCLOSURE REQUIREMENTS

N/A